

****Police Report****

Texas Andreas Petersen A/S recommended for fine

Date: 06-10-2023

****Decision****

Private Companies

****Police Report****

****Complaint****

****Basis for Processing****

Cookies / processing of personal data about website visitors

The Data Protection Agency reports Texas Andreas Petersen A/S to the police for having collected and disclosed personal data about website visitors without legal basis and recommends a fine of no less than 200,000 DKK. The Data Protection Agency has reported the company Texas Andreas Petersen A/S for having collected and disclosed personal data about website visitors on www.texas.dk without a legal basis. The Data Protection Agency became aware, in connection with a complaint, that the company was collecting personal data about website visitors. The Data Protection Agency could ascertain through a review of the website that a number of cookies were used to collect and disclose information about the visitors to Google and Meta.

Normally, when the Data Protection Agency recommends a fine, a specific amount is proposed based on the nature of the case and the organization's revenue. The Data Protection Agency has reviewed the company's most recently published annual accounts. However, the company's net revenue for the most recent financial year is not stated in the annual accounts, and therefore the recommendation in this case is for a fine of at least 200,000 DKK.

****Why police report?****

The Data Protection Agency always conducts a specific assessment of the severity of the case pursuant to Article 83, paragraph 2 of the General Data Protection Regulation when evaluating which sanction the Agency believes is appropriate. In assessing that a fine should be imposed, the Data Protection Agency has, among other things, emphasized that this involves the processing of personal data without a legal basis for processing personal data about potentially a very large number of registered individuals who have visited the website. The Data Protection Agency has also emphasized that the Agency has been addressing and guiding since February 2020 on how data protection rules should be understood in the context of processing personal data about website visitors.

****Want to know more?****

Read more about the processing of personal data about website visitors.